



**AMENDMENT TO THE DECLARATION OF
COVENANTS, CONDITIONS AND RESTRICTIONS**
for
COLUMBIA LAKES

WHEREAS, the Declaration of Covenants, Conditions and Restrictions for Columbia Lakes, Sections 1, 2, 3 and 4 was dated July 18, 1972 and recorded in the Official Records of Real Property of Brazoria County, Texas under Volume 1128, Page 911, together with any annexations and amendments thereto (hereinafter referred to as the "Declaration");

WHEREAS, Texas Property Code Section 209.0041(h) states, "Except as provided by Subsection (h-1) or (h-2), a declaration may be amended only by a vote of 67 percent of the total votes allocated to property owners entitled to vote on the amendment of the declaration, in addition to any governmental approval required by law [...] (h-1) If the declaration contains a lower percentage than prescribed by Subsection (h), the percentage in the declaration controls." and;

WHEREAS, Article II Section 4 of the Declaration provides an amendment to the Declaration may be made by an instrument signed by the then Owners representing a majority of the Lots in the Subdivision;" and

WHEREAS, the Declaration has been amended at a Meeting of the Members held on November 1, 2020 by a vote of at least a majority (51%) of the total votes allocated to property owners in the Columbia Lakes Homeowners Association, Inc. (the "Association"), voting either in person or by proxy, thereby approving this Amendment to the Declaration as attested to by the President and Secretary of the Association below;

NOW THEREFORE, Article VI Section 1 of the Declaration shall hereby be AMENDED to read as follows:

"1. Each Lot in the Subdivision shall be and is hereby made subject to a maintenance charge of not more than \$50 per month (\$600 per year) for developed lots, and not more than \$20 per month (\$240 per year) for undeveloped lots except as otherwise hereinafter provided. Lot owner(s) shall be charged for each whole Lot and pro rata for any portion of a Lot(s) owned by such owner(s).

Definitions for the purpose of determining Maintenance Charges.

Developed Lot: Lot which includes a single-family dwelling.

Undeveloped Lot: Lot without a single-family dwelling and/or a Lot containing a portion of a single-family dwelling, adjoining a Developed Lot.

As it pertains to adjoining Lots, only one (1) Lot will be considered a Developed Lot per each single-family dwelling. If a single-family dwelling extends onto a partial Lot, the larger Lot will be assessed at the full Developed Lot rate and the partial Lot will be prorated as an Undeveloped Lot."

Nothing herein is intended to alter, modify or amend the Declaration, except as specifically provided hereinabove.

CERTIFICATION

We, the undersigned, are the duly elected and acting President and Secretary of Columbia Lakes Homeowners Association, Inc., a non-profit corporation, and we do hereby certify:

That the within and foregoing AMENDMENT TO THE DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS for COLUMBIA LAKES was approved and adopted at a Meeting of the Members on the 1st day of November, 2020, by a vote of at least a majority (51%) of the total votes allocated to property owners the Association, voting either in person or by proxy.

IN WITNESS WHEREOF, we have executed this Amendment to the Declaration to be effective as of the 31st day of December, 2020.


(Signature)

KEITH E. BARKER
(Print Name)

President, Columbia Lakes
Homeowners Association, Inc.


(Signature)

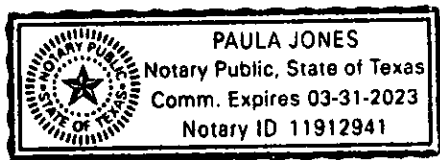
Wendy Galloway
(Print Name)

Secretary, Columbia Lakes
Homeowners Association, Inc.

THE STATE OF TEXAS

§
§
§COUNTY OF Brazoria

This instrument was acknowledged before me, on the 10th day of December, 2020, by Keith E. Barker, President of Columbia Lakes Homeowners Association, Inc. a Texas Non-Profit Corporation.

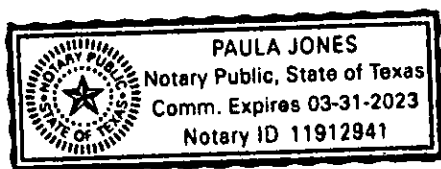


Paula Jones
NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

THE STATE OF TEXAS

§
§
§COUNTY OF Brazoria

This instrument was acknowledged before me, on the 11th day of December, 2020, by Sandy Galloway Secretary of Columbia Lakes Homeowners Association, Inc., a Texas Non-Profit Corporation.



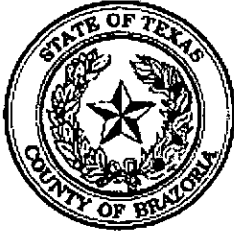
Paula Jones
NOTARY PUBLIC IN AND FOR
THE STATE OF TEXAS

FILED and RECORDED

Instrument Number: 2020073665

Filing and Recording Date: 12/11/2020 04:30:35 PM Pages: 4 Recording Fee: \$34.00

I hereby certify that this instrument was FILED on the date and time stamped hereon and RECORDED in the OFFICIAL PUBLIC RECORDS of Brazoria County, Texas.



A handwritten signature in black ink, appearing to read "Joyce Hudman".

Joyce Hudman, County Clerk
Brazoria County, Texas

ANY PROVISION CONTAINED IN ANY DOCUMENT WHICH RESTRICTS THE SALE, RENTAL, OR USE OF THE REAL PROPERTY DESCRIBED THEREIN BECAUSE OF RACE OR COLOR IS INVALID UNDER FEDERAL LAW AND IS UNENFORCEABLE.

DO NOT DESTROY - Warning, this document is part of the Official Public Record.

cclerk-krystal